PROFESSIONAL SERVICE CONTRACT

Contract No.: PSC-2026-001
Date: March 10, 2026

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1. THE PARTIES

This Service Contract (the "Agreement") is made effective as of **March 10, 2026** (the "Effective Date") by and between:

SERVICE PROVIDER:
[Company Name / Individual Name]
Address: [Complete Address]
Email: [Email Address]
Phone: [Contact Number]
(hereinafter referred to as the "Service Provider")

AND

CLIENT:
[Client Company Name / Individual Name]
Address: [Complete Address]
Email: [Email Address]
Phone: [Contact Number]
(hereinafter referred to as the "Client")

(Collectively referred to as the "Parties")

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2. RECITALS

WHEREAS, the Service Provider is engaged in the business of providing [Type of Services];

WHEREAS, the Client desires to engage the Service Provider to perform certain services as described herein;

WHEREAS, the Service Provider agrees to provide such services under the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

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3. SCOPE OF WORK

3.1 Services Description

The Service Provider shall provide the following services (the "Services"):

- Development and implementation of [specific service/product]
- Consultation and technical support
- Regular progress reports and documentation
- Quality assurance and testing
- Post-delivery support for [duration]

3.2 Deliverables

The Service Provider shall deliver the following:

Deliverable	**Description**	**Due Date**
Initial Assessment	Comprehensive analysis report	[Date]
Development Phase 1	Core functionality implementation	[Date]
Development Phase 2	Advanced features integration	[Date]
Final Delivery	Complete solution with documentation	[Date]

Table 1: Project Deliverables Schedule

3.3 Performance Standards

All Services shall be performed in a professional and workmanlike manner in accordance with industry standards and best practices.

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4. TERM AND TERMINATION

4.1 Contract Duration

This Agreement shall commence on **[Start Date]** and shall continue until **[End Date]**, unless terminated earlier in accordance with the provisions of this Agreement.

4.2 Termination for Convenience

Either Party may terminate this Agreement by providing **thirty (30) days** written notice to the other Party.

4.3 Termination for Cause

Either Party may terminate this Agreement immediately upon written notice if:

- The other Party materially breaches any provision of this Agreement
- The other Party becomes insolvent or files for bankruptcy
- The other Party engages in fraudulent or illegal activities

4.4 Effect of Termination

Upon termination:

- The Client shall pay for all Services performed up to the termination date
- The Service Provider shall deliver all work products and materials
- Both Parties shall return confidential information
- Obligations under confidentiality and intellectual property clauses shall survive

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5. COMPENSATION AND PAYMENT TERMS

5.1 Service Fees

The Client agrees to pay the Service Provider as follows:

Option A: Fixed Fee of **₹[Amount]** for the complete scope of work

Option B: Hourly Rate of **₹[Amount] per hour**

Option C: Milestone-based payments as per the schedule below:

Milestone	Amount (₹)	Payment Due
Contract Signing	[Amount]	Upon execution
Phase 1 Completion	[Amount]	[Date]
Phase 2 Completion	[Amount]	[Date]
Final Delivery	[Amount]	Upon acceptance
Total	**[Total Amount]**	

Table 2: Payment Schedule

5.2 Payment Method

All payments shall be made via:

- Bank Transfer to Account No: [Account Number]
- UPI ID: [UPI ID]
- Check payable to: [Payee Name]

5.3 Late Payment

Payments not received within **fifteen (15) days** of the due date shall incur a late fee of **1.5% per month** on the outstanding balance.

5.4 Expenses

All reasonable expenses incurred by the Service Provider in connection with the Services shall be reimbursed by the Client upon presentation of appropriate receipts and documentation.

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6. CONFIDENTIALITY

6.1 Definition

"Confidential Information" means all non-public information disclosed by either Party, including but not limited to:

- Business plans, strategies, and financial information
- Technical data, designs, and specifications
- Customer lists and proprietary information
- Trade secrets and intellectual property

6.2 Obligations

Each Party agrees to:

- Maintain the confidentiality of all Confidential Information
- Use such information solely for the purposes of this Agreement
- Not disclose Confidential Information to third parties without prior written consent
- Return or destroy all Confidential Information upon termination

6.3 Duration

The confidentiality obligations shall remain in effect for **three (3) years** following the termination of this Agreement.

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7. INTELLECTUAL PROPERTY RIGHTS

7.1 Ownership

All work products, deliverables, and materials created by the Service Provider in the course of performing the Services (the "Work Product") shall be the exclusive property of:

Option A: The Client (upon full payment)

Option B: The Service Provider (with license granted to Client)

7.2 License Grant

If the Service Provider retains ownership, the Service Provider hereby grants to the Client a perpetual, non-exclusive, worldwide license to use the Work Product for the Client's business purposes.

7.3 Pre-existing Materials

Each Party retains all rights to its pre-existing intellectual property. Any pre-existing materials incorporated into the Work Product shall remain the property of the contributing Party.

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8. REPRESENTATIONS AND WARRANTIES

8.1 Service Provider Warranties

The Service Provider represents and warrants that:

- It has the authority and capacity to enter into this Agreement
- Services will be performed with professional skill and care
- Work Product will be original and will not infringe third-party rights
- It will comply with all applicable laws and regulations

8.2 Client Warranties

The Client represents and warrants that:

- It has the authority to enter into this Agreement
- All information provided to Service Provider is accurate
- It will provide timely cooperation and resources as needed

8.3 Warranty Period

The Service Provider warrants that the Services will conform to specifications for a period of **ninety (90) days** from delivery.

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9. INDEMNIFICATION

9.1 Service Provider Indemnity

The Service Provider agrees to indemnify and hold harmless the Client from any claims arising from:

- Breach of this Agreement by the Service Provider
- Negligence or willful misconduct of the Service Provider
- Infringement of third-party intellectual property rights

9.2 Client Indemnity

The Client agrees to indemnify and hold harmless the Service Provider from any claims arising from:

- Client's use of the Work Product
- Client-provided materials or specifications
- Breach of this Agreement by the Client

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10. LIMITATION OF LIABILITY

10.1 Cap on Liability

Except for breaches of confidentiality or intellectual property provisions, neither Party's total liability under this Agreement shall exceed the total amount paid or payable under this Agreement.

10.2 Exclusion of Damages

Neither Party shall be liable for indirect, incidental, consequential, or punitive damages, including lost profits or business opportunities.

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11. INDEPENDENT CONTRACTOR

The Service Provider is an independent contractor and not an employee of the Client. The Service Provider shall be responsible for all taxes, insurance, and benefits. Nothing in this Agreement creates a partnership, joint venture, or agency relationship.

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12. DISPUTE RESOLUTION

12.1 Negotiation

Any disputes arising under this Agreement shall first be resolved through good-faith negotiations between the Parties.

12.2 Mediation

If negotiations fail, the Parties agree to submit the dispute to mediation before a mutually agreed mediator.

12.3 Arbitration

If mediation is unsuccessful, disputes shall be resolved through binding arbitration in accordance with the Arbitration and Conciliation Act, 1996.

12.4 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of **India**.

12.5 Jurisdiction

The courts of **[City, State]** shall have exclusive jurisdiction over any disputes arising from this Agreement.

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13. GENERAL PROVISIONS

13.1 Entire Agreement

This Agreement constitutes the entire agreement between the Parties and supersedes all prior negotiations, representations, and agreements.

13.2 Amendments

No amendment or modification of this Agreement shall be valid unless in writing and signed by both Parties.

13.3 Waiver

The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

13.4 Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

13.5 Assignment

Neither Party may assign this Agreement without the prior written consent of the other Party.

13.6 Notices

All notices under this Agreement shall be in writing and delivered to the addresses specified in Section 1 by:

- Personal delivery
- Registered mail or courier
- Email (with read receipt)

13.7 Force Majeure

Neither Party shall be liable for delays or failures in performance resulting from circumstances beyond reasonable control, including natural disasters, war, strikes, or government actions.

13.8 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one agreement.

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14. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

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SERVICE PROVIDER:

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Signature

Name: [Full Name]

Title: [Title/Designation]

Date: _____

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CLIENT:

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_____

Signature

Name: [Full Name]

Title: [Title/Designation]

Date: _____

APPENDIX A: ADDITIONAL TERMS

[Insert any additional specific terms, technical specifications, or schedules as needed]

END OF CONTRACT